

The Collapse of the Spitzenkandidaten Process and the EU's Democratic Deficit

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Abstract

This paper examines the structural democratic deficit inherent in the selection of the European Commission President, focusing on the collapse of the Spitzenkandidaten process as a critical inflection point in the EU's democratic development. Under Article 17 of the Treaty on European Union, the European Council nominates the Commission President while taking EP elections “into account,” using language deliberately ambiguous enough to permit democratic signalling without democratic constraint.

The 2019 appointment of Ursula von der Leyen serves as the paper's central case. Despite the European Parliament's clear preference for Spitzenkandidat Manfred Weber, von der Leyen was selected as a candidate who had not campaigned, debated, or been endorsed by any party family. This exposed the Spitzenkandidaten convention as politically unenforceable, given voters had participated in elections framed around executive leadership only to see the outcome determined through intergovernmental bargaining among national leaders.

The analysis concludes that the deficit is structural rather than incidental, while identifying three reinforcing structural factors: the European Council's effective retention of nomination authority, the systematic exclusion of parliamentary actors from executive career pathways, and the Lisbon Treaty's deliberate ambiguity on electoral accountability. Together, these produce a governance model in which democratic participation is encouraged but democratic control remains elusive.

Introduction

Scholarly debate over the European Union's democratic legitimacy has long centred on the concept of the democratic deficit. While defenders of the EU's institutional design argue that its constraints mirror those found in domestic democracies (Moravcsik, 2002), critics contend that the Union systematically underperforms on measures of electoral accountability, particularly as EU competencies have expanded into areas traditionally reserved for national parliaments (Hix and Høyland, 2011). The Maastricht judgment by the German Federal Constitutional Court in 1993 cemented these concerns, demanding that EU governance remain anchored in democratic principles even as sovereignty was pooled across member states (Weiler, 1995).

It was against this backdrop that the Spitzenkandidaten process emerged, using the German term meaning “lead candidate” as an attempt to strengthen input legitimacy by linking European Parliament (EP) elections directly to executive leadership. What began as an informal convention appeared to offer a solution to the EU's democratic problem: voters would choose not merely among parties but among prospective Commission Presidents, thereby giving their ballots direct executive significance.

However, the collapse of this logic in the selection of Ursula von der Leyen as Commission President in 2019 exposed the fragility of this reform. Despite the European Parliament's insistence that the presidency should be drawn from among the Spitzenkandidaten (Hobolt, 2014), the European Council exercised its treaty-based discretion to nominate a candidate who had not participated in the electoral process at all. This decision not only sidelined the

Parliament's preferred candidates, most notably Manfred Weber, but also called into question the democratic meaning of the election itself. Voters were invited to participate in a contest framed around executive leadership, only to see the outcome determined through intergovernmental bargaining.

This paper argues that the current process for selecting the President of the European Commission produces a structural democratic deficit by weakening the electoral significance of EP elections, reinforcing executive dominance by national leaders, and marginalising parliamentary actors in ways that contradict the spirit of the Lisbon Treaty. The failure of the Spitzenkandidaten process did not merely represent a political setback for the Parliament; it revealed a deeper institutional imbalance in which democratic signalling is permitted without democratic constraint. By examining the collapse of the Spitzenkandidaten experiment, the role of the European Council, and the resulting legitimacy challenges faced by the Commission presidency, this paper seeks to demonstrate how executive control over supranational governance continues to undermine the EU's democratic aspirations.

Theoretical Framework: Democratic Deficit and Institutional Design

The concept of democratic deficit has become the central lens through which scholars evaluate the European Union's legitimacy. Yet the term encompasses multiple distinct critiques, and clarifying these distinctions is essential for understanding the argument advanced in this paper.

Fritz Scharpf (1999) distinguishes between two forms of democratic legitimacy: input legitimacy and output legitimacy. Input legitimacy derives from citizen participation in decision-making through elections, referenda, or other forms of democratic engagement. Output legitimacy, by contrast, stems from the effective delivery of policies that citizens need, regardless of whether they participated in shaping those policies. Scharpf's influential argument is that the EU systematically privileges output legitimacy at the expense of input legitimacy. The Union excels at producing regulatory outcomes that benefit European citizens economically, but it does so through institutions that insulate decision-making from democratic control. Member states retain sovereignty in name while pooling it in practice, yet the pooling occurs through executive channels that bypass parliamentary accountability.

Andrew Moravcsik (2002) challenges this characterisation, arguing that the EU's institutional constraints are functionally similar to those found in domestic democracies. Just as citizens in national systems often delegate authority to executives and independent agencies, the EU's design reflects standard democratic trade-offs between efficiency and accountability. From this perspective, the EU is not fundamentally undemocratic, rather it is democratic in ways that differ from familiar national models.

This paper takes a position closer to Scharpf's while acknowledging the force of Moravcsik's institutional comparison. The critical distinction is not whether the EU is democratic in some sense, but whether its most powerful institutional positions are subject to meaningful electoral accountability. The Commission presidency represents the apex of the EU's executive authority, and its selection process reveals a structural imbalance: democratic participation is actively

encouraged through high-profile electoral campaigns, yet the formal authority to determine the outcome rests with intergovernmental actors who face no equivalent electoral constraint.

This analysis therefore understands democratic deficit not as a vague sense of illegitimacy but as a specific institutional condition: the capacity for citizens to influence governance outcomes through elections is systematically weaker than the capacity of unelected or indirectly elected actors to determine those outcomes. The Spitzenkandidaten process is significant as it was an attempt to close the gap, and because its collapse revealed how deeply the structural imbalance is embedded in the EU's constitutional design.

The Spitzenkandidaten Experiment and Its Collapse

The Spitzenkandidaten process was first introduced ahead of the 2014 European Parliament elections as an informal mechanism to strengthen the link between voters and the Commission presidency. European party families nominated lead candidates who campaigned across member states, debated one another publicly, and presented themselves as prospective Commission Presidents. The European People's Party (EPP) put forward Jean-Claude Juncker, while the Progressive Alliance of Socialists and Democrats (S&D) nominated Martin Schulz. These candidates participated in televised debates, published policy platforms, and campaigned explicitly on the basis that the leading candidate from the largest party would become Commission President.

The 2014 election produced a result that appeared to validate this logic. Despite initial resistance from British Prime Minister David Cameron, who opposed Juncker's candidacy, the European Council ultimately nominated Juncker, and the European Parliament voted to approve his Commission. This outcome was widely interpreted as establishing a binding parliamentary convention: the President of the European Commission would be the Spitzenkandidat of the party family that won the most seats in EP elections (Hobolt, 2014). For the first time, voters could plausibly claim that their ballots had determined the Union's executive leadership.

However, the 2014 outcome obscured several structural weaknesses. The European Council had formally nominated Juncker only after intense political pressure, including threats from the Parliament to block any other candidate. The Council's acquiescence was therefore strategic rather than principled — it reflected the political circumstances of 2014, not a binding constitutional commitment. Moreover, the Lisbon Treaty provided no enforcement mechanism: Article 17(7) of the Treaty on European Union requires only that the European Council "take into account" the results of EP elections, language deliberately crafted to preserve executive discretion (Christiansen, 2016).

By 2019, expectations surrounding the Spitzenkandidaten process had hardened considerably — perhaps excessively so. European political parties once again presented lead candidates, and voters were encouraged to view their ballots as meaningful choices not only among parties but among potential executive leaders (Hix and Høyland, 2011). Manfred Weber, as the EPP's Spitzenkandidat, embodied this logic. As an experienced MEP and leader of the largest parliamentary group, Weber represented a vision of parliamentary elevation to executive authority, signalling that the European Parliament could serve as a genuine pathway to the

highest office in the EU's institutional hierarchy. The S&D candidate, Frans Timmermans, represented a similar vision from the centre-left.

The European Council's rejection of Weber and subsequent nomination of Ursula von der Leyen marked a decisive rupture with the expectation established in 2014. Von der Leyen had not campaigned, had not been presented to voters, and had not been endorsed by any party family as a lead candidate (JCMS, 2025). She had served as German Defence Minister in Angela Merkel's cabinet but had not held a prominent role in the European Parliament or in any transnational party campaign. Her selection revealed that the Spitzenkandidaten process lacked binding force and could be discarded when it conflicted with the preferences of national leaders.

The political context matters here. Several heads of government — most notably Emmanuel Macron and Matteo Salvini — had expressed reservations about Weber during the campaign period. Macron, in particular, favoured a candidate more aligned with his vision of EU reform and less tied to the traditional party establishment. The resulting intergovernmental bargain produced von der Leyen as a compromise candidate acceptable to both the EPP and the member states that had opposed Weber. This outcome reframed the 2019 elections retroactively: what had been presented as a popular choice over executive leadership was reduced to a consultative exercise with no guaranteed institutional consequences.

The collapse of the Spitzenkandidaten experiment thus represented more than procedural disagreement. It exposed a structural contradiction between electoral mobilisation and institutional authority. By allowing parties to campaign on promises they could not enforce, the EU inadvertently undermined the credibility of its own democratic innovations. As Christiansen

(2016) notes, the convention remained legally optional and therefore vulnerable to Council intervention. Rather than strengthening legitimacy, the process ultimately highlighted the limits of parliamentary power within the Union's executive architecture.

The 2024 European Parliament elections further complicated the trajectory of the Spitzenkandidaten process. While the EPP once again nominated a lead candidate, the eventual selection of Ursula von der Leyen for a second term — following another round of intergovernmental negotiations — replicated the 2019 pattern. The Parliament's leverage remained limited, and the distinction between campaigning as a Spitzenkandidat and actually securing the presidency persisted. This continuity underscores that the 2019 collapse was not an aberration but part of a recurring pattern in which electoral expectations are generated and then frustrated by intergovernmental decision-making.

Executive Dominance and the Commission Presidency

The selection of Ursula von der Leyen also underscored a longstanding pattern in the EU's institutional development: the dominance of national executives in shaping supranational leadership. Since the creation of the European Commission, its Presidents have consistently been drawn from the ranks of former Prime Ministers, Ministers, or senior national officials (Oxford Academic, 2025). Walter Hallstein, the first Commission President, had served as a senior diplomat in West Germany's Foreign Office. Subsequent Presidents have included former Prime Ministers (Jacques Delors, Romano Prodi, José Manuel Barroso), former Foreign Ministers (Javier Solana), and former Finance Ministers (Pierre Moscovici, though not as President). No individual whose career was primarily rooted in the European Parliament has ever assumed the presidency (Dinan, 2020).

This pattern suggests the existence of an informal norm reserving the Commission's top office for figures socialised within national executive governance. The reasoning is partly functional: Commission Presidents are expected to manage complex intergovernmental negotiations, represent the EU in dealings with member states, and command the respect of national leaders. A background in national executive office provides socialisation into the dynamics of executive decision-making that parliamentary experience does not offer in the same way.

The marginalisation of Manfred Weber is instructive here. Despite leading the largest parliamentary group and heading a transnational electoral campaign, Weber was widely regarded by national leaders as insufficiently qualified due to his lack of executive experience at the national level (Meissner et al., 2021). This reasoning implicitly devalues parliamentary careers, treating legislative authority as an inferior form of political capital. The Commission presidency thus becomes a domain in which executives select one of their own, reinforcing an intergovernmental logic even within ostensibly supranational institutions.

The German and French roles in this dynamic deserve particular attention. Ursula von der Leyen's candidacy emerged from discussions between Angela Merkel and Emmanuel Macron, reflecting the informal Franco-German motor that often drives EU decision-making. Merkel, having worked closely with von der Leyen in the German cabinet, was well positioned to advocate for her, while Macron sought a candidate who would be receptive to his reform agenda. This bilateral coordination effectively bypassed both the European Parliament's preferences and the broader intergovernmental process, concentrating decision-making authority in the hands of two national leaders.

Statements by European Council figures reinforce this interpretation. Former President Donald Tusk repeatedly asserted that the Commission remains under the Council's influence, and that the Spitzenkandidaten process would not be permitted to constrain the Council's discretion (Curtin, 2020). Such remarks suggest that, despite formal institutional independence, the Commission presidency is expected to remain politically aligned with the preferences of national leaders. The Council's control over the nomination process functions as a structural guarantee that the Commission does not drift too far from intergovernmental consensus, even at the cost of parliamentary legitimacy.

This executive capture has important normative consequences. If the EU's most powerful executive office is functionally inaccessible to parliamentary actors, then European Parliament elections lose their potential to shape leadership trajectories. Parliamentary democracy becomes procedurally active but substantively constrained, reinforcing the perception that real power resides elsewhere (Scharpf, 1999). The Commission presidency thereby serves as a focal point through which broader tensions between supranational democratic aspirations and intergovernmental control are concentrated and revealed.

Parliamentary Weakness, Legitimacy, and Governance Consequences

The Spitzenkandidaten process placed the European Parliament in a structurally precarious position. By embracing the logic of executive-linked elections without securing enforceable authority, the Parliament exposed the outer limits of its institutional power. Party leaders campaigned as prospective Commission Presidents, participated in televised debates, and presented themselves as legitimate claimants to executive office (EPP, 2018). Yet when these claims were ignored, the Parliament appeared unable to defend the political meaning of its own

elections. Without formal nomination authority, its insistence on the Spitzenkandidaten principle remained aspirational rather than binding (Hobolt, 2014).

This outcome damaged the Parliament's credibility in two reinforcing ways. First, it weakened the perceived connection between voting and governance: voters who supported the EPP expecting Weber to become Commission President were confronted with an outcome bearing little relation to their choice. Second, it demonstrated that democratic rituals without enforcement mechanisms risk undermining institutional legitimacy rather than enhancing it. The episode thus transformed what was meant to be a democratising reform into a symbolic exercise that backfired precisely when it was tested (Hix and Høyland, 2011).

Von der Leyen's presidency has borne the consequences of this flawed process. Her confirmation by the Parliament was secured by a margin of nine votes — the narrowest margin in the history of Commission investiture — reflecting widespread unease with both her candidacy and the procedure that produced it. This thin mandate has persisted throughout her tenure, manifesting in repeated motions of no confidence, sustained parliamentary criticism, and visible friction over policy priorities.

The governance consequences have been tangible. Von der Leyen's initial policy agenda, presented in her political guidelines, emphasised climate leadership through the European Green Deal, digital transformation, and social cohesion. However, the Parliament's sceptical initial stance complicated the Commission's relationship with the legislative arm from the outset. Subsequent disputes over the Rule of Law Conditionality Regulation, the handling of the COVID-19 pandemic response, and the Commission's handling of the Pegasus surveillance

scandal have all generated significant parliamentary opposition. In several instances, the Parliament has voted to withhold approval of Commission proposals or has demanded formal explanations for executive decisions: motions that would be unthinkable for a President with a robust electoral mandate.

A President beholden to the European Council may prioritise consensus among national leaders over responsiveness to parliamentary concerns (Curtin, 2020). This dynamic weakens the Parliament's oversight capacity and reinforces perceptions of executive insulation. The resulting governance model privileges stability and elite coordination at the expense of democratic contestation, preserving legal authority while diluting democratic resonance (Scharpf, 1999).

The broader implication is that the Parliament's institutional role remains fundamentally reactive. While the Lisbon Treaty expanded the Parliament's co-decision powers and formal competences, the Spitzenkandidaten episode demonstrated that the Parliament lacks the structural capacity to translate electoral outcomes into executive control. The Parliament can delay, amend, and obstruct Commission proposals, but it cannot determine who leads the executive branch. This limitation reinforces a pattern in which the Parliament exercises significant legislative influence but remains excluded from the foundational question of executive legitimacy.

The Lisbon Treaty and the Limits of Democratic Intent

The Lisbon Treaty sought to address the EU's democratic deficit by enhancing the Parliament's role and acknowledging the importance of electoral outcomes. Article 17(7) of the Treaty on European Union establishes the current framework:

"Taking into account the elections to the European Parliament and after having held the appropriate consultations, the European Council shall propose to the European Parliament a candidate for President of the European Commission. This candidate shall be elected by the European Parliament by a majority of its component members."

The phrase "taking into account" was the product of extended negotiation between member states seeking to preserve Council discretion and those advocating for stronger parliamentary involvement. The language deliberately permits democratic signalling without mandating democratic constraint — it allows the European Council to acknowledge electoral results while retaining the authority to nominate whoever it chooses (Christiansen, 2016). The Treaty therefore creates space for informal conventions like Spitzenkandidaten to emerge without constitutionalising them.

This ambiguity was not accidental. The post-Nice intergovernmental conference that produced the Lisbon Treaty reflected a deliberate compromise between supranational and intergovernmental logics. Member states were unwilling to grant the Parliament formal veto power over the Commission President, fearing that this would shift the balance of power too far toward the supranational level. Yet they were equally unwilling to ignore electoral outcomes entirely, recognising that the EU's democratic legitimacy required some connection between

voting and executive selection. The result was language precise enough to satisfy both camps in the negotiation but ambiguous enough to preserve flexibility in practice.

The Treaty therefore enables a form of managed democracy in which democratic expectations can be raised without being fulfilled. Scharpf (1999) identifies this as a characteristic feature of EU governance: institutions are designed to facilitate elite coordination while providing democratic cover through periodic elections and consultative mechanisms. The Spitzenkandidaten process emerged within this framework, exploiting the ambiguity of Article 17(7) to establish a convention that the European Council could accept in 2014 and reject in 2019 without violating any treaty obligation.

Understanding the democratic deficit therefore requires moving beyond questions of political will to examine structural incentives. The Treaty's design allows executive actors to reinterpret or disregard electoral outcomes without formal violation. Informal conventions like Spitzenkandidaten are, by this logic, constitutionally dispensable. The Lisbon Treaty thus represents simultaneously an aspiration toward democratisation and a structural constraint upon its realisation.

This design has broader implications for the EU's democratic trajectory. Each cycle in which electoral promises are made but cannot be enforced erodes public trust in the institutions meant to represent European citizens. The democratic deficit revealed in 2019 is therefore not the product of individual political opportunism, but of a treaty architecture that deliberately left the relationship between elections and executive appointments undefined (Hix and Høyland, 2011). The Treaty's ambiguity may have been intended to preserve flexibility among member states

with divergent visions of integration, but it also entrenches a system in which democratic expectations are structurally disappointed.

Conclusion

The selection of the European Commission President offers a revealing lens through which to examine the EU's persistent democratic deficit. The collapse of the Spitzenkandidaten process demonstrated how electoral participation can be actively encouraged without guaranteeing electoral influence. By prioritising executive discretion over parliamentary preference, the European Council reaffirmed its institutional dominance while weakening the democratic meaning of EP elections.

This outcome reflects a structural hierarchy within the EU's institutional system. While voters elect the Parliament, national executives continue to shape the Union's most powerful offices. The Commission presidency remains an elite domain, accessible primarily to former national leaders and insulated from parliamentary career pathways. Executive experience is valued above parliamentary legitimacy, and the Lisbon Treaty's deliberate ambiguity preserves this arrangement while dressing it in the language of democratic reform.

Critics of this analysis will argue that intergovernmental coordination is not a bug but a feature of EU governance. The European Council's dominance ensures that the Commission remains responsive to member state preferences, which themselves reflect domestic democratic mandates. From this perspective, the Spitzenkandidaten process was always an overreach — a

parliamentary attempt to circumvent the legitimate authority of national executives. Stability and effective decision-making may require that the most powerful office in the EU remain under the control of those best positioned to negotiate among diverse national interests (Moravcsik, 2002).

Yet this defence overlooks the symbolic and practical consequences of the current arrangement. When voters are told that their ballots will determine the Commission's leadership, and when that promise is then retracted through intergovernmental bargaining, the resulting cynicism undermines trust in EU institutions far more than a system that is transparent about its intergovernmental character would. The EU cannot simultaneously claim to be democratising through Spitzenkandidaten and preserve executive dominance through the European Council without generating significant legitimacy costs.

Whether this arrangement is normatively acceptable remains contested. Stability and intergovernmental coordination may justify executive dominance in the eyes of member states, but they do so at the cost of democratic clarity and public trust. The Lisbon Treaty's ambiguous design allows this tension to persist, enabling democratic rhetoric without democratic accountability. The 2024 Commission selection, which replicated the 2019 pattern despite renewed parliamentary protests, confirms that the structural dynamics identified in this paper have not been reversed.

Ultimately, the democratic deficit exposed by the Commission presidency selection process is structural rather than incidental. Addressing it would require either granting the European Parliament genuine authority over executive selection — or abandoning the pretence that elections determine leadership outcomes. The former would involve Treaty reform to make the

Spitzenkandidaten process binding, a step member states have consistently resisted. The latter would involve honest acknowledgement that the EU operates through intergovernmental coordination rather than parliamentary democracy. Until such a choice is made explicitly, the EU risks sustaining a system in which democratic participation is encouraged, but democratic control remains elusive.

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